

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 23, 2026
8:30 a.m.

2. DAVID SMITH V. CYNTHIA SMITH

22FL0136

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on July 29, 2026, to compel Respondent's required disclosures under Family Code sections 2104 and 2105.

A hearing on the RFO was originally set for September 09, 2026. On September 08, 2026, the court issued a tentative ruling that incorrectly stated there was no proof of service for the RFO in the court's file. In fact, Petitioner filed proof of service on August 12, 2026, which shows the RFO was personally served upon Respondent on August 11, 2026. During the September 9 hearing, the court vacated its tentative ruling and continued the matter to September 23, 2026. The court ordered Petitioner to serve Respondent notice of the continued hearing date, as well as the court's tentative ruling issued September 08, 2026. On September 15, 2026, Petitioner filed the required proof of service, showing personal service of the September 08, 2026, tentative ruling and September 09, 2026, minute order on September 12, 2026.

Also on September 15, 2026, Respondent filed a Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration (Judicial Council form FL-141), indicating that she served the required preliminary and final disclosures upon Petitioner via mail that same day. Therefore, the Petitioner's RFO appears to be moot.

The court denies the RFO as moot.

TENTATIVE RULING #2: THE COURT DENIES PETITIONER'S RFO AS MOOT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.